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Provision of June 22, 2023
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No. 332 of June 22, 2023

THE GUARANTOR FOR THE PROTECTION OF PERSONAL DATA

IN THE meeting held today, attended by
Prof. Pasquale Stanzione, President, Dr.
Agostino Ghiglia, and Attorney Guido Scorza, members, and
Dr. Claudio Filippi, Deputy Secretary General;

HAVING REGARD TO Regulation (EU) 2016/679 of the European Parliament
and of the Council of April 27, 2016 (hereinafter, "Regulation");

HAVING REGARD TO the Code regarding the protection of personal data, containing provisions for
the adaptation
of the national legal system to Regulation (EU)
2016/679 (Legislative Decree of June 30, 2003, No. 196, as
amended by Legislative Decree of August 10, 2018, No. 101, hereinafter "Code");

HAVING REGARD TO the Ethical Rules regarding the processing
of personal data in the exercise of journalistic activity as per Annex 1 of the Code (hereinafter "Ethical
Rules");

HAVING REGARD TO the complaint submitted to the Guarantor, pursuant
to Article 77 of the Regulation, on December 22, 2021, by XX, who complained of a violation
of the regulations concerning the protection of personal data in relation to the article published by
"Futuro Molise" titled "XX", available at the link
<https://....> This article referred to
the circumstance of his mobilization with the
competent Minister regarding the issue of the installation
of photovoltaic panels in historic centers, in
relation to the renovation works of his own
residence, and particularly disclosed the
town and neighborhood where it is located, also publishing a photograph that showed
the name of the street and highlighted the entrance
of the property;

CONSIDERING that in requesting the definitive limitation
of the processing concerning "the further dissemination of images depicting
the residence (..) attached to the aforementioned
article," the complainant highlighted:

- the lack of a public interest in the knowledge
of the news, given the absence of any connection between the
content of the article and the role of XX held by him;
- the derogatory nature of the article towards his
person and the political party to which he belongs, given his role as spokesperson and
Group Leader of XX within the XX of XX;
- the violation of the principle of essentiality
of information as per Article 6 of the aforementioned Ethical Rules regarding the
publication of the photo depicting his residence, as well as the previous Article 3 concerning the
protection of the home and places of private residence;
- the possibility, also due to the location
of the property in an area characterized by a
low population density, of its immediate
recognizability and the risk of harm to

the safety and privacy of himself and his family members;

- the high number of online views of the article recorded at the time of the complaint;

HAVING REGARD TO the note of April 12, 2022, in which the Authority requested Futuro Molise S.r.l. – publisher of the online newspaper “Futuro Molise”, responsible for the publication of the article subject to the complaint – to provide comments regarding the complaint itself;

HAVING REGARD TO the subsequent note of April 20, 2022, in which the Company, through the responsible director of the newspaper, requested the rejection of the complaint, noting the inconsistency of the reasons behind the act, and stated that:

- there is a public interest in the dissemination of the news because it "concerns the activity of a subject holding a public office" and also highlights "the attitude of a political figure running for the Presidency of the XX and leading the main opposition force to the XX";
- there are no derogatory profiles in the article in question, as it is evident that the citizens have an interest in knowing that "Councilor XX, a subject holding a public office, has approached the Government (...) to obtain a result that the citizens he represents very rarely manage to obtain due to the known bureaucratic problems";
- there are no profiles of violation in the case of publication of external images of residences of political figures, as also confirmed by other articles published by national circulation newspapers (e.g., the article from Il Sole 24ore of March 21, 2014, which even includes the address, house number, and floor of XX's residence);
- the circumstance that the published image depicts the exterior of the building visible from the street and is "a screenshot of images obtained from Google Maps," which are therefore present in the Google information system and accessible to anyone;
- the consideration that the footage in question does not violate any rules protecting the home or places of private residence, as such protection only applies if the places are adequately shielded and removed from normal observation from the outside;
- the instrumental nature of the complaint, as the interested party could respond to the criticisms of the article and "make the truth known to the citizens";

HAVING REGARD TO the note of April 28, 2023, in which the complainant reiterated his grievances, highlighting:

- the absence of elements aimed at demonstrating both the public interest in the dissemination of the news and the essentiality of the publication of the photo of the residence as reproduced and accompanied by identifying elements, considering, in particular, the absence of any connection between such publication

and the political role performed;

- the circumstance that the article, more than an expression of "legitimate political criticism," aimed to discredit his image from a moral and political standpoint, given also the title, and to make his residence known to all, exposing him and his family "to a concrete danger to our safety";

HAVING SEEN the note from the Office dated October 7, 2022, with which, pursuant to art. 166, paragraph 5, of the Code, it was communicated to Futuro Molise S.r.l., the data controller complained of in the complaint, the initiation of proceedings for the potential adoption of the measures referred to in art. 58, paragraph 2, of the Regulation, noting the alleged violation of the following provisions:

- the general principles of processing referred to in art. 5, paragraph 1 of the Regulation and, in particular, the principles of "lawfulness and fairness" (letter a) and of "data minimization" (letter c);

- art. 137, paragraph 3, of the Code, and art. 6 of the "Ethical Rules concerning the processing of personal data in the exercise of journalistic activity";

HAVING SEEN the defensive memorandum dated November 4, 2022, with which the Company, reiterating its position, highlighted that:

- the news, disseminated with restrained and proportionate language, concerned a matter of public interest, given the position held by the complainant and the local relevance of the newspaper;

- the reference to certain details in the contested article must be considered an essential condition to ensure clear and transparent information to the citizen regarding the right to be informed, especially due to the subjective qualification of the interested party as a

public figure and representative of the community within the XX;

- the conduct of the interested party must be considered relevant concerning his role or public life, having in his institutional capacity, addressed the competent Minister precisely to draw attention to "a problem closely related to the private facts subject to news within the article";
- the article not only meets the requirements of restraint and truthfulness of the news but presents comments and opinions typical of journalistic activity that belong to the freedom of information;

- the information regarding the complainant's residence and the photo depicting the street where the property is located and its entrance, as per the practice used by national newspapers, was limited to the mere location of the building of a local public figure, without violating his home and obtaining the image from the web, nor was there any recourse to invasive techniques;

- the information, considering that Mr. XX is very attached to the town of XX (with

only 4,500 inhabitants) of which he is originally from as can be inferred from a simple web search, cannot be considered absolutely confidential as it can be deemed already known to the XX community and, due to the public relevance of the interested party, also by a large part of the regional community;

- the limited relevance of the contested information for the safety of the interested party who, as a public figure of regional importance, would not be a victim of hypothetical attacks on his person due to the mere publication of the facade of his building, which is already known to most;

HAVING SEEN the note from the Office dated December 13, 2022, with which the modalities for conducting the hearing requested with the aforementioned memorandum were communicated to the data controller;

HAVING SEEN the subsequent communication from the data controller dated January 18, 2023, which acknowledged the death of the responsible director of the newspaper and the consequent request for postponement of the hearing, also noting the removal of the photo available at the aforementioned link;

HAVING SEEN the last note dated June 7, 2023, with which the new management of the newspaper communicated the withdrawal of the requested hearing;

CONSIDERING that, unless the act constitutes a more serious crime, anyone who, in a proceeding before the Guarantor, falsely declares or attests to news or circumstances or produces false acts or documents is liable under art. 168 of the Code "Falsehood in declarations to the Guarantor and interruption of the execution of the tasks or the exercise of the powers of the Guarantor";

HAVING SEEN the applicable regulations in this case and in particular:

- art. 5, paragraph 1 letters a) and c) of the Regulation regarding the general principles of lawfulness and fairness, as well as data minimization in the processing of personal data;
- art. 137, paragraph 3 of the Code which provides that the dissemination of data for journalistic purposes must take place in compliance with the limits of the right to report and the principle of "essentiality of information regarding facts of public interest";
- art. 6 of the "Ethical Rules concerning the processing of personal data in the exercise of journalistic activity" which identifies the conditions and limits for the processing of personal data in the journalistic field, in relation to the aforementioned principle of "essentiality of information";

CONSIDERING that compliance with the aforementioned Ethical Rules constitutes an essential condition for the lawfulness and fairness of the processing of personal data (art. 2-quater of the Code);

CONSIDERING that the aforementioned photo, showing the name of the street where the claimant's residence is located and the visibility of the entrance, due to the property's location in an area characterized by low population density, allowed for immediate recognition by anyone, in contrast to

the principle of the essentiality of information, and resulted in an inadequate processing of personal data concerning the legitimate informational purposes pursued (see also the provision of the Guarantor no. 212 of November 27, 2019, web doc no. 9236666);

CONSIDERING, for the reasons stated above, that in this specific case, the dissemination of the photo should be deemed in violation of Article 5, paragraph 1, letters a) and c), of the Regulation, Article 137, paragraph 3, of the Code, as well as Article 6 of the Ethical Rules, and that the related processing, having been carried out in the aforementioned manner, should be considered unlawful;

THEREFORE, IT IS DEEMED necessary to impose on Futuro Molise S.r.l., pursuant to Article 58, paragraph 2, letter f) of the Regulation, the measure of prohibition of further processing of the photograph subject to this proceeding concerning its further dissemination, including online, except for mere preservation for potential use in judicial proceedings;

NOTING that, in case of non-compliance with the prohibition measure imposed by the Guarantor, the sanction referred to in Article 170 of the Code may apply, in addition to the administrative sanction referred to in Article 83, paragraph 5, letter e) of the Regulation;

FURTHER CONSIDERING that, due to the violations identified above, a specific injunction order should be adopted against Futuro Molise S.r.l. pursuant to Articles 166, paragraph 7, of the Code and 18 of Law no. 689/1981, for the application of the administrative pecuniary sanction provided for by the combined provisions of Articles 2-quater, 166, paragraph 2, of the Code, and 83, paragraph 5 of the Regulation;

NOTING that for the determination of the amount of the pecuniary sanction, it is necessary to take into account the elements indicated in Article 83, paragraph 2, of the Regulation, and that in this specific case, the following aggravating circumstance should be considered:

a) the harmfulness, for the privacy of the interested party, of the conduct that led to the dissemination of the photo of their residence with the indication of the street name and the visibility of the entrance, taking into account the property's location in an area characterized by low population density and the consequent immediate recognizability by anyone (Article 83, paragraph 2, letter a) of the Regulation);

and the following mitigating circumstances:

a) the purposes pursued by the data controller, related to the exercise of the right to report and the freedom of information (see Article 83, paragraph 2, letter a) of the Regulation), also considering the subjective qualification of the interested party and, therefore, the necessity to ensure, in this context, the related balancing with the fundamental rights of the interested parties to the protection of privacy, as established by the Regulation (Article 85) and the Code (Articles 136 et seq.);

b) the lack of elements aimed at proving the negative impact on the private life of the interested party and their family and the detriment to their relative safety and tranquility (see Article 83, paragraph 2, letter a) of the Regulation);

c) the declared conviction of the data controller regarding the legitimacy of the processing, without the intention to harm the legal sphere of the interested party, taking into account the characteristics of the photograph and the recognizability of the elements referring to the residence by the local community (see Article 83, paragraph 2, letter b) of the Regulation);

d) the measures adopted by the data controller, as the company removed the photo in question during the proceeding (see Article 83, paragraph 2, letter c) of the Regulation);

e) the absence of previous similar violations committed by the same data controller (see Article 83, paragraph 2, letter e) of the Regulation);

f) the economic and professional conditions of the offender (Article 83, paragraph 2, letter k), taking into account the local nature of the publishing reality and what emerged from the company's financial data;

CONSIDERING the above parameters and the principles of effectiveness, proportionality, and deterrence indicated in Article 83, paragraph 1, of the Regulation;

IT IS DEEMED that, based on the overall elements indicated above, taking into due account the

various mitigating circumstances that emerged, the administrative pecuniary sanction should be applied in the amount of €2,000.00 (two thousand), equal to 0.01% of the maximum penalty, against Futuro Molise S.r.l.;

IT IS ALSO DEEMED that, pursuant to Articles 166, paragraph 7, of the Code, and 16, paragraph 1, of the Guarantor's Regulation no. 1/2019, the publication of this provision on the Guarantor's website should proceed as an accessory sanction;

IT IS DEEMED that the conditions exist to proceed with the annotation in the internal register of the Authority referred to in Article 57, paragraph 1, letter u) of the Regulation, regarding the violations and the measures adopted in this specific case in accordance with Article 58, paragraph 2, of the same Regulation;

HAVING SEEN the documentation in the records;

HAVING SEEN the observations made by the Secretary General pursuant to Article 15 of the Guarantor's Regulation no. 1/2000;

REPORTER Dr. Agostino Ghiglia;

ALL OF THE ABOVE CONSIDERED, THE GUARANTOR pursuant to Article 57, paragraph 1, letter f) of the Regulation, declares the complaint well-founded for the reasons stated in the preamble and, in particular:

pursuant to Article 58, paragraph 2, letter f) of the Regulation, orders against Futuro Molise S.r.l. the measure of prohibition of further processing of the photograph subject to this proceeding with reference to its further dissemination, including online, as well as in the historical archive, except for mere preservation for potential use in judicial proceedings;

ORDERS

pursuant to Articles 58, paragraph 2, letter i) and 83 of the Regulation, Futuro Molise S.r.l., based in Sesto Campano (IS), Contrada Mazzarello s.n.c. - VAT: 00925370942 to pay the sum of €2,000.00 (two thousand) as an administrative pecuniary sanction for the violations indicated in the reasoning, representing that the offender, pursuant to Article 166, paragraph 8, of the Code has the option to settle the dispute by payment, within thirty days, of an amount equal to half of the imposed sanction.

ORDERS

the aforementioned Company, in case of failure to settle the dispute pursuant to Article 166, paragraph 8, of the Code to pay the sum of €2,000.00 (two thousand) according to the methods indicated in the annex, within 30 days from the notification of this provision, under penalty of the adoption of the consequent executive acts in accordance with Article 27 of Law No. 689/1981.

PROVIDES

- a) pursuant to Article 166, paragraph 7, of the Code, the publication of this provision on the website of the Authority and
- b) pursuant to Article 17 of Regulation No. 1/2019 of the Authority, the annotation in the internal register of the Authority referred to in Article 57, paragraph 1, letter u), of the Regulation, regarding the measures adopted in this case in accordance with Article 58, paragraph 2, of the same Regulation.

Pursuant to Article 78 of the Regulation, as well as Articles 152 of the Code and 10 of Legislative Decree No. 150 of September 1, 2011, an appeal against this provision may be filed with the ordinary judicial authority, with a petition submitted, alternatively, to the court of the place where the data controller resides or is based or to that of the place of residence of the interested party within thirty days from the date of communication of this provision or sixty days if the applicant resides abroad.

Rome, June 22, 2023

THE PRESIDENT

Stanzione

THE RAPPORTEUR

Ghiglia

THE DEPUTY SECRETARY GENERAL

Filippi